



CHAPTER cxxxv.

An Act to confirm a Provisional Order of the Local Government Board relating to Exeter. A.D. 1913.

[15th August 1913.]

WHEREAS the Local Government Board have made the Provisional Order set forth in the First Schedule hereto under the provisions of the Local Government Act 1888:

51 & 52 Vict.
c. 41.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as amended and set out in the First Schedule hereto (hereinafter referred to as "the Order") shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in First Schedule confirmed.

2. On any adjustment made otherwise than by agreement for the purposes of the Order or of this Act under section thirty-two or section sixty-two of the Local Government Act 1888 or under either of those sections as modified or adapted by the Order— Provisions as to adjustments made otherwise than by agreement.

(a) Any adjustment of the local taxation licences the estate duty grant and the residue under section one of the Local Taxation (Customs and Excise) Act 1890 in pursuance of the Order shall be carried out in accordance with the rules contained in Part I. of the Second Schedule hereto:

(b) Provision shall be made for the payment to any council or other authority affected by the Order of such sum

[Ch. cxxxv.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 11) Act, 1913.

A.D. 1913.
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as seems equitable in accordance with the rules contained in Part II. of the Second Schedule hereto in respect of any increase of burden which will properly be thrown on the ratepayers of the area of that council or other authority in meeting the cost incurred by that council or other authority in the execution of any of their powers and duties as a consequence of any alteration of boundaries effected by the Order or other change in relation to which the adjustment takes place.

In this section and in Part II. of the said Second Schedule the expression "council or other authority affected by the Order" includes any council authority or persons entitled to make an adjustment under section sixty-two of the Local Government Act 1888 or that section as modified or adapted by the Order.

Short title.

3. This Act may be cited as the Local Government Board's Provisional Order Confirmation (No. 11) Act 1913.

SCHEDULES.

A.D. 1913.

FIRST SCHEDULE.

CITY OF EXETER.

Provisional Order made in pursuance of the Local Government Act 1888 for extending a County Borough. *Exeter Order.*

To the Mayor Aldermen and Citizens of the City and County of the City of Exeter;—

To the Court of Quarter Sessions for the said City;—

To the Justices of the Peace for the said City;—

To the Justices of the Peace for the County of Devon in Quarter Sessions assembled;—

To the County Council of Devon;—

To the Exeter Port Sanitary Authority;—

To the Urban District Council of Heavitree;—

To the Rural District Council of Saint Thomas;—

To the Governor Deputy Governor Assistants and Guardians of the Poor of the City and County of Exon;—

To the Guardians of the Poor of the Saint Thomas' Union;—

To the Parish Councils of Alphington Pinhoe and Topsham;—

To the Overseers of the Poor of the Parishes of Alphington Exeter Heavitree Pinhoe and Topsham;—

And to all others whom it may concern.

WHEREAS by Section 54 of the Local Government Act 1888 the Local Government Board are empowered to make a Provisional Order for altering the boundary of any Borough and by such Order to divide or alter any electoral division;

And whereas the City and County of the City of Exeter is a County of itself and is a County Borough within the meaning of the Local Government Act 1888 and is for the purposes of that Act situate in the County of Devon and the inhabitants are a body corporate by the name of the Mayor Aldermen and Citizens of the City and County of the City of Exeter and act by the Council of

[Ch. cxxxv.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 11) Act, 1913.

A.D. 1913. the said City which now consists of the Mayor fourteen Aldermen
Exeter Order. and forty-two Councillors and the said City is for the purposes of
the election of Councillors divided into fourteen wards;

And whereas the said City includes the Parish of Exeter
and is an Urban Sanitary District of which the Mayor Aldermen
and Citizens acting by the Council are the Urban Sanitary
Authority;

And whereas the said City has a separate court of quarter sessions
commission of the peace police force recorder sheriff and coroner and
an ancient court of record known as the Provost Court;

2 Edw. 7. And whereas in pursuance of the Education Act 1902 the Council
c. 42. of the said City are the local education authority;

And whereas the unrepealed provisions of the Local Acts specified
in Part I. of the Schedule A. to this Order and of the Confirmation Acts
specified in Part II. of the said schedule so far as the last-mentioned
Acts relate to the Orders specified in that schedule are in force in the
said City;

And whereas the provisions of—

53 & 54 Vict.
c. 34.

(A) The Infectious Disease (Prevention) Act 1890;

53 & 54 Vict.
c. 59.

(B) The Public Health Acts Amendment Act 1890;

54 & 55 Vict.
c. 22.

(C) The Museums and Gymnasiums Act 1891 so far as it relates
to museums only;

7 Edw. 7.
c. 40.

(D) The Notification of Births Act 1907;

9 & 10 Vict. c. 74.
10 & 11 Vict. c. 61.
41 & 42 Vict. c. 14.
45 & 46 Vict. c. 30.
59 & 60 Vict. c. 59.
62 & 63 Vict. c. 29.
55 & 56 Vict. c. 53.
56 Vict. c. 11.
1 Edw. 7. c. 19.

(E) The Baths and Washhouses Acts 1846 to 1899; and

(F) The Public Libraries Acts 1892 to 1901;

are in force in the said City;

15 & 16 Vict.
c. 85.

And whereas the Council of the said City are the authority for
the execution of the Burial Acts 1852 to 1906 within the City;

6 Edw. 7.
c. 44.

And whereas the Urban District of Heavitree in the Administrative
County of Devon immediately adjoins the said City and is co-extensive
with the Parish of Heavitree and is subject to the jurisdiction of
the Urban District Council of Heavitree;

And whereas the provisions of—

(A) The Infectious Disease (Prevention) Act 1890;

(B) Parts II. III. and IV. of the Public Health Acts Amendment
Act 1890; and

55 & 56 Vict.
c. 57.

(C) The Private Street Works Act 1892;

are in force in the Urban District of Heavitree;

And whereas the Urban District Council of Heavitree are the
authority for the execution of the Burial Acts 1852 to 1906 within
the Parish of Heavitree;

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxv.]
Provisional Order Confirmation (No. 11) Act, 1913.

And whereas the Parishes of Alphington Pinhoe and Topsham are contributory places in the Rural District of Saint Thomas and are subject to the jurisdiction of the Rural District Council of Saint Thomas; A.D. 1913.
Exeter Order.

And whereas a detached part of the Parish of Topsham immediately adjoins the said City and the remainder of that Parish immediately adjoins the Parish of Heavitree;

And whereas the provisions of the Infectious Disease (Prevention) Act 1890 and the provisions of Part III. of the Public Health Acts Amendment Act 1890 which are applicable to Rural Districts are in force in the Rural District of Saint Thomas;

And whereas the Parishes of Alphington Pinhoe and Topsham are rural parishes within the meaning of the Local Government Act 1894 for each of which a Parish Council has been established and the Parish Council of Topsham is the authority for the execution of the Burial Acts 1852 to 1906 in that parish; 56 & 57 Vict.
c. 73.

And whereas the Lighting and Watching Act 1833 has been adopted in the Parish of Topsham; 3 & 4 Will. 4.
c. 90.

And whereas a Board of Guardians called the Governor Deputy Governor Assistants and Guardians of the Poor of the City and County of Exon has in pursuance of the provisions of the Local Acts specified in the Schedule B. to this Order as amended by subsequent legislation been constituted for the Parish of Exeter which is for the purposes of the election of Guardians divided into eleven wards which are respectively co-extensive with and bear the same names as the municipal wards into which the part of the said City which comprises the Parish of Exeter is divided for the purpose of the election of Councillors and two guardians are elected for each of such wards;

And whereas the Parish of Heavitree is included in the Saint Thomas' Union and is for the purpose of the election of guardians divided into five wards which are termed respectively the Central Ward the Polsloe Ward the Priory Ward the Rural Ward and the Wonford Ward and one guardian is elected for each of those wards;

And whereas the Parishes of Alphington Pinhoe and Topsham are included in the Saint Thomas' Union and the Rural District Councillors elected for those parishes are the representatives of the parishes on the Board of Guardians of that Union;

And whereas in pursuance of the Education Act 1902 the Parishes of Alphington Heavitree Pinhoe and Topsham form part of the area of the County Council of the Administrative County of Devon as the local education authority; 2 Edw. 7.
c. 42.

[Ch. cxxxv.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 11) Act, 1913.

A.D. 1913. And whereas by virtue of an Order of the Local Government Board
Exeter Order. dated the Fourteenth day of August One thousand eight hundred and
63 & 64 Vict. eighty-eight as altered by virtue of the Exeter Corporation Act
c. ccxxxii. 1900 and by an order of the Local Government Board dated the
Sixteenth day of February One thousand nine hundred and ten the
number of County Councillors for the County of Devon is seventy-eight
and the Parish of Heavitree constitutes the Heavitree Electoral Division
of that County the Parish of Topsham is included in the Topsham
Electoral Division of that County the Parish of Alphington is included
in the Alphington Electoral Division of that County and the Parish of
Pinhoe is included in the Broadclist Electoral Division of that County ;

And whereas by an Order of the Local Government Board dated the
Ninth day of June One thousand eight hundred and eighty-eight a
Joint Board termed the Exeter Port Sanitary Authority was permanently
constituted the Port Sanitary Authority for the part of the Port of Exeter
therein described and provision was made by Article 11 of such Order
with regard to the apportionment of the expenses incurred by the Port
Sanitary Authority and by the said Article as altered by another Order
of the Local Government Board dated the Seventh day of January One
thousand nine hundred and one it is ordered that the constituent
riparian authorities of the Port Sanitary Authority shall contribute
towards such expenses in the proportions following namely :—

The Urban Sanitary Authority for the City and County of the City of Exeter	-	Six-Elevenths
The Urban District Council for the Urban District of Exmouth	- - -	Two-Elevenths
The Rural District Council for the Rural District of Saint Thomas	- - -	Three-Elevenths :

51 & 52 Vict. Now therefore We the Local Government Board in pursuance of
c. 41. the powers given to Us by Sections 54 and 59 of the Local Government
Act 1888 and by any other enactments in that behalf do hereby order
that from and after the date of the Act of Parliament confirming this
Order the following provisions shall take effect :—

Definitions.

Art. I. In this Order—

- (1) The expression “the commencement of this Order” means
the Ninth day of November One thousand nine hundred
and thirteen ;
- (2) The expression “the existing City” means the City and
County of the City of Exeter as the said City and County
existed immediately prior to the commencement of this
Order ;

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxv.]
Provisional Order Confirmation (No. 11) Act, 1913.

- (3) The expression "the City" means the existing City and County as extended by this Order; A.D. 1913.
Exeter Order.
- (4) The expression "the Corporation" means as the context requires the Mayor Aldermen and Citizens of the existing City or of the City acting by the Council;
- (5) The expressions "the County" and "the County Council" mean respectively the Administrative County of Devon and the County Council of that County;
- (6) The expression "the Board of Guardians" means the Board of Guardians constituted as aforesaid and called the Governor Deputy Governor Assistants and Guardians of the Poor of the City and County of Exon;
- (7) The expressions "the Urban District" and "the Urban Council" mean respectively the Urban District of Heavitree and the Urban District Council of that District;
- (8) The expressions "the Rural District" and "the Rural Council" mean respectively the Rural District of Saint Thomas and the Rural District Council of that District;
- (9) The expression "the City maps" means the two maps each marked "Map showing the areas included in the City and County of the City of Exeter by the Exeter (Extension) Order 1913" and sealed with the official seal of the Local Government Board;
- (10) The expression "the Ward maps" means the two maps each marked "Map of the three Wards of the City and County of the City of Exeter constituted by the Exeter (Extension) Order 1913" and sealed with the official seal of the Local Government Board;
- (11) The expression "the added areas" means the part of the Urban District and the parts of the Rural District added to the existing City by this Order;
- (12) The expression "the added part of Heavitree (District No. 1)" means the part of the Parish of Heavitree which is coloured pink on the City maps the expression "the added part of Heavitree (District No. 2)" means the part of that parish which is coloured blue on the City maps the expression "the added parts of Heavitree" means the added part of Heavitree (District No. 1) and the added part of Heavitree (District No. 2) the expression "the excluded parts of Heavitree" means the remaining parts of that parish which are respectively coloured brown purple and yellow on the City maps the expression "the

[Ch. cxxxv.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 11) Act, 1913.

A.D. 1913.

Exeter Order.

added parts of Topsham" means the two parts of that parish which are coloured green on the City maps and the expression "the excluded part of Topsham" means the remaining part of that parish;

- (13) The expressions "the existing Parish of Alphington" "the existing Parish of Exeter" "the existing Parish of Pinhoe" and "the existing Parish of Topsham" mean in each case the parish as it existed immediately prior to the commencement of this Order and the expressions "the Parish of Alphington" "the Parish of Exeter" "the Parish of Pinhoe" and "the Parish of Topsham" mean in each case the parish as altered by this Order;
- (14) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894;
- (15) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same and the expression "the Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same;
- (16) The expression "the Burial Acts" means the Burial Acts 1852 to 1906;
- (17) The expression "the Exeter Poor Acts" means the Local Acts specified in the Schedule B. to this Order;
- (18) The expression "the Act of 1907" means the Public Health Acts Amendment Act 1907;
- (19) The expression "the Heavitree Slaughter-house Byelaws" means the byelaws with respect to slaughter-houses made by the Urban Council on the Fifteenth day of February One thousand eight hundred and ninety-nine and allowed by the Local Government Board on the Twenty-seventh day of March One thousand eight hundred and ninety-nine;
- (20) The expression "the Port Sanitary Authority" means the Exeter Port Sanitary Authority the expression "the Port Order" means the Order of the Local Government Board dated the Ninth day of June One thousand eight hundred and eighty-eight by which the Port Sanitary Authority was constituted and the expression "the Port Amending Order" means the Order of the Local Government Board dated the Seventh day of January One thousand nine hundred and one by which the Port Order was amended.

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxv.]
Provisional Order Confirmation (No. 11) Act, 1913.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred and thirteen :

A.D. 1913.
Exeter Order.
 Commence-
 ment of
 Order.

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the City under the Municipal Corporations Acts of the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year One thousand nine hundred and thirteen and of the revision of the basis or standard of the county rate of the County this Order shall operate from the date of the Act of Parliament confirming this Order :

Date of
 operation of
 Order for
 parish bur-
 gess lists &c.
 51 Vict. c. 10.

Provided also that for the purposes of Sections 20 22 23 24 and 26 of the Act of 1888 and for the purposes of the Local Taxation (Customs and Excise) Act 1890 as amended by Section 17 of the Finance Act 1907 Section 6 of the Finance Act 1908 Section 88 of the Finance (1909-10) Act 1910 the Revenue Act 1911 and any subsequent Act and as affected by any Order in Council made under Section 6 of the Finance Act 1908 the City shall be deemed not to have been altered and the added areas shall be deemed to continue part of the County until after the Thirty-first day of March One thousand nine hundred and fourteen.

Date of ope-
 ration for
 purposes of
 certain
 grants and
 Local Taxa-
 tion Licences.
 53 & 54 Vict.
 c. 60.
 7 Edw. 7. c. 13.
 8 Edw. 7. c. 16.
 10 Edw. 7.
 c. 8.
 1 Geo. 5. c. 2.

Art. III.—(1) The boundary of the existing City shall be altered so as to include in addition to the area of the existing City so much of the Urban District as comprises the added parts of Heavitree and so much of the Rural District as comprises the added parts of Topsham.

Extension of
 City.

(2) The added areas shall for the purposes of the Municipal Corporations Acts and for all other purposes be included in the City and shall for the purposes of the Act of 1888 be included in the County Borough.

Art. IV.—(1) One of the City maps and one of the Ward maps shall be deposited in the office of the Local Government Board and the other shall be deposited by the town clerk of the existing City at his office within fourteen days after the date of this Order Copies of the City map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the Clerk of the County Council to the Clerk to the Rural Council to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to

Deposit of
 maps.

[Ch. cxxxv.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 11) Act, 1913.

A.D. 1913. the Postmaster-General to the Board of Trade and to the Board of
Exeter Order. Agriculture and Fisheries and copies of the Ward map so deposited and
certified in like manner shall be sent within the said period to the
Registrar-General and to the Board of Agriculture and Fisheries.

Copies of
map to be
evidence.

(2) Copies of or extracts from the City map deposited with the
town clerk certified by him to be true shall be received in all courts of
justice and elsewhere as *prima facie* evidence of the contents of the
map so far as it relates to the boundaries of the City and the map shall
at all reasonable times be open to inspection by any person liable
to any rate leviable within the City and any such person shall
be entitled to a copy of or extract from the map certified by the town
clerk to be true on payment of a reasonable fee to be determined by
the Corporation. All fees so received shall be carried to the credit of
the borough fund.

Powers and
duties of
justices &c.
extended.

Art. V.—(1) The powers and duties of the quarter sessions recorder
sheriff coroner and clerk of the peace of the existing City of the
Provost Court and of the judge and other officers thereof of the justices
of the peace appointed for the existing City and of the clerk to those
justices and of the police constables and other peace officers of the
existing City shall extend to and apply throughout the City:

Provided that every person committing an offence in any part of
the added areas prior to the commencement of this Order shall be
tried adjudicated on and dealt with as if this Order had not been
made:

Provided also that every proceeding which prior to the commence-
ment of this Order has been begun by or before any justice or justices
or coroner in relation to any matter arising in or concerning any part of
the added areas may be carried on continued or completed in like manner
and with the like incidents and consequences as nearly as may be as
if this Order had not been made.

Transfer
of lists of
prisoners &c.

(2) Lists of prisoners writs process and particulars and all records
and documents relating to or to be executed in connexion with any
action or proceeding pending or existing at the commencement of
this Order and appertaining to the added areas shall be delivered
turned over or transferred and signed in like manner in all respects
so nearly as circumstances admit as is required to be done upon a
new sheriff coming into office in like manner as if the sheriff of the
City were as respects the added areas the new sheriff in succession to
the sheriff of the County.

Parish bur-
gess lists &c.

Art. VI.—(1) For the purposes of the parish burgess lists and
burgess roll and the other lists to be made under the Municipal
Corporations Acts and of all matters connected with incidental to or
consequent upon those purposes the added areas shall be deemed to
have always been part of the City.

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxv.]
Provisional Order Confirmation (No. 11) Act, 1913.

(2) In making out revising or otherwise dealing with the said lists and roll or the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act or the lists and registers of parochial electors effect shall be given so far as the circumstances require or allow to the provisions of this Order.

A.D. 1913.
Exeter Order.

(3) Where any difficulty arising in the year One thousand nine hundred and thirteen in giving effect to the provisions of this Order can be obviated or removed by any alteration in or re-arrangement of or any other action affecting the said lists roll and registers that alteration re-arrangement or action so far as the same may be necessary for giving effect to the said provisions shall be made or taken by the town clerk of the existing City or the clerk of the County Council as the case may require and the Overseers of the Poor shall render such assistance as may be requisite for the purpose of the said alteration re-arrangement or action by the town clerk or clerk of the County Council as the case may be and that alteration re-arrangement or action shall be deemed to be authorised by the provisions in force with respect to the said lists roll and registers.

(4) Where in the opinion of the Local Government Board the circumstances so require the Local Government Board may make such order as appears to them to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the said lists roll and registers.

Art. VII. The number of Councillors of the City shall be increased from forty-two to fifty-one and the number of Aldermen of the City shall be increased from fourteen to seventeen.

Number of
Councillors
and Alder-
men,

Art. VIII. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:—

Division into
wards.

(1) For the purposes of the election of Councillors the City shall be divided into seventeen wards:

(2) The fourteen existing Wards and the number of Councillors respectively apportioned thereto shall remain unaltered:

(3) The added areas shall be formed into three new Wards named respectively the Heavitree Ward comprising that part of the City which is coloured pink on the Ward maps the Polsloe Ward comprising that part of the City which is coloured blue on the Ward maps and the Wonford Ward comprising that part of the City which is coloured yellow on the Ward maps:

Constitution
and areas of
new wards.

(4) Three Councillors shall be assigned to each of the Wards constituted by subdivision (3) of this Article.

[Ch. cxxxv.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 11) Act, 1913.

A.D. 1913.

Exeter Order.
 First election
 of Council-
 lars for new
 wards and of
 additional
 Aldermen.

Art. IX.—(1) The first election of Councillors for the three new Wards constituted by this Order shall be held on the First day of November One thousand nine hundred and thirteen and the Mayor of the existing City shall be the returning officer at the election for those wards Provided that the Mayor of the existing City may appoint some other person to act as returning officer at the election for any of the wards.

(2) The first election of the three additional Aldermen of the City shall take place on the Tenth day of November one thousand nine hundred and thirteen and of the three additional Aldermen then to be elected one shall be chosen from among the Councillors elected for the Heavitree Ward one from among the Councillors elected for the Polsloe Ward and one from among the Councillors elected for the Wonford Ward or in each case from among the persons qualified to be Councillors whose qualifying property is situate in the ward.

Retirement
 of Councillors
 for the three
 new wards
 and of addi-
 tional Alder-
 men elected
 in 1913.

Art. X.—(1) The Councillors elected for the City in the year One thousand nine hundred and thirteen for the three new wards constituted by this Order shall retire as follows:—

(A) The Councillor for each ward who is elected by the smallest number of votes on the First day of November One thousand nine hundred and fourteen:

(B) The Councillor for each ward who is elected by the largest number of votes on the First day of November One thousand nine hundred and sixteen:

(C) The other Councillor for each ward on the First day of November One thousand nine hundred and fifteen.

(2) The three additional Aldermen elected for the City in the year One thousand nine hundred and thirteen shall retire as follows:—

(A) The Alderman elected by the smallest number of votes on the Ninth day of November One thousand nine hundred and fifteen:

(B) The other two Aldermen on the Ninth day of November One thousand nine hundred and eighteen.

Provided that if for any reason it is doubtful which of the Councillors or Aldermen as the case may be ought to retire on the dates above specified the Council of the City shall on the Tenth day of November One thousand nine hundred and thirteen or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the Councillors or Aldermen as the case may be shall go out of office on the dates above specified respectively.

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxv.]
Provisional Order Confirmation (No. 11) Act, 1913.

Art. XI.—(1) (A) The Act 2 and 3 Wm. IV. c. cvi. and Section 3 of the Act 3 and 4 Vict. c. cxxii. relating to the taking of tolls or articles sold outside the market shall not extend to or apply within the added areas : A.D. 1913.
Exeter Order.

(B) Sections 29 to 35 and 37 of the City of Exeter Extension Act 1877 and Section 41 of the Exeter Corporation Act 1900 shall be repealed.

(2) Subject to the provisions of this Order the unrepealed provisions of the Local Acts and of the Confirmation Acts specified in the Schedule A. to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders specified in that Schedule and of any other Local Act (including any Local Act passed or to be passed during the present Session of Parliament) or of any other Provisional Order duly confirmed by Parliament and affecting the existing City or the Corporation as the same respectively are in force within the existing City at the commencement of this Order shall extend and apply to the City and any reference therein to the existing City and the Corporation shall be deemed to refer to the City and the Corporation thereof. Local Acts
and Orders.

Art. XII. Subject to the provisions of this Order—

Byelaws &c.

(1)—(A) All byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing City shall thenceforth apply to the City until or except in so far as any such byelaws regulations list of tolls table of fees and payments or scale of charges may be altered or repealed :

(B) The Heavitree Slaughter-house Byelaws shall until or except so far as any of these byelaws are altered or repealed be in force within and apply to the City as if the same had been made by the Corporation and as if the Corporation and the City were referred to therein instead of the Urban Council and the Urban District :

(2) All byelaws and regulations made by the County Council the Urban Council or the Rural Council or their predecessors (other than the Heavitree Slaughter-house Byelaws) and in force immediately before the commencement of this Order in any part of the added areas shall on that date cease to be in force except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved before that date by the Council of the District in which the part is situated or have

[Ch. cxxxv.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 11) Act, 1913.

A.D. 1913.

Exeter Order.

been sent to the surveyor or clerk to that Council one month at least before that date and shall not have been disapproved by that Council. As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the City were referred to therein instead of the Council of the District in which the part is situated and that District. Provided that any proceedings which if this Order had not been made might have been taken by the County Council or by the Urban Council or by the Rural Council for any offence committed before the commencement of this Order against any byelaws and regulations which by virtue of this subdivision cease to be in force may be taken by the Corporation as if those byelaws and regulations had remained in force and as if the Corporation had been substituted therein for that Council.

Town clerk
and other
officers con-
tinued.

Art. XIII.—(1) The town clerk and all other officers and servants of the Corporation of the existing City who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the City and shall hold their offices by the same tenure as at that date.

City auditors.

(2) The auditors of the existing City who are in office at the commencement of this Order shall continue in office and shall for the purposes of the Municipal Corporations Acts be the city auditors until the next ordinary day of election of city auditors.

Compensa-
tion to exist-
ing officers.

Art. XIV.—(1) The provisions of subsection (13) of Section 118 and of Section 119 of the Act of 1888 shall apply to all persons who at the commencement of this Order hold office as officers or servants of the Urban Council with such modifications as are necessary to make those provisions applicable to the said officers and servants and to the Corporation.

(2) Every clerk to justices and county coroner and every officer or servant of or paid by the County Council or of or paid by the Standing Joint Committee of the County and every other officer or servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxv.]
Provisional Order Confirmation (No. 11) Act, 1913.

in determining the said compensation and the compensation payable to any person who becomes entitled to compensation in pursuance of subdivision (1) of this Article regard shall be had to the conditions and other circumstances required by subsection (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid in the case of any such officer or servant whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 out of the district fund and general district rate of the City and in every other case out of the borough fund and borough rate of the City and the provisions of subsections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

A.D. 1913.

Exeter Order.

(3) For the purposes of subdivision (2) of this Article any clerk to Justices county coroner or officer or servant to whom that subdivision applies and whose services are dispensed with or whose salary is reduced by the Secretary of State or the County Council or the Standing Joint Committee of the County or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

(4) No person shall be entitled to claim or receive both compensation for any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

Art. XV.—(1) Any action or proceeding or any cause of action or proceeding which at the commencement of this Order is pending or existing by or against the Urban Council or by or against the Rural Council in relation exclusively to any part of the added areas or in relation exclusively to any of the excluded parts of Heavitree shall not be in anywise prejudicially affected by reason of the making of this Order but may in the case of any part of the added areas be continued prosecuted and enforced by or against the Corporation of the City and in the case of any of the excluded parts of Heavitree by or against the Rural Council.

*Actions &c.
not to abate.*

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Urban Council or by the Rural Council or their predecessors in relation exclusively to any part of the added areas or in relation exclusively to any of the excluded

*Saving for
contracts &c.*

[Ch. cxxxv.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 11) Act, 1913.

A.D. 1913. parts of Heavitree shall be of as full force and effect against or in
Exeter Order. favour of the Corporation of the City in the case of any part of the
added areas or the Rural Council in the case of any of the excluded parts
of Heavitree and may be continued and enforced as fully and effectually
as if instead of the Urban Council the Rural Council or their pre-
decessors the Corporation or the Rural Council as the case may be
had done or suffered the same or been a party thereto.

Corporation property &c. Art. XVI. Subject to the provisions of this Order all property vested
in the Corporation at the commencement of this Order for the benefit
of the existing City shall by virtue of this Order be held by the Corpo-
ration for the benefit of the City and the Corporation shall hold enjoy
and exercise for the benefit of the City all the powers which at the
date aforesaid are exerciseable by or vested in the Corporation for
the benefit of the existing City and all liabilities which on the date
aforesaid attach to the Corporation in respect of the existing City shall
from and after that date attach to them in respect of the City.

Liquidation of current debts and liabilities by Urban Council. Art. XVII.—(1) The Urban Council shall liquidate as far as prac-
ticable before the commencement of this Order all current debts and
liabilities incurred by them.

(2) The Urban Council shall prior to the commencement of this
Order make provision for raising sufficient funds to defray all current
debts and liabilities and the current expenditure to be incurred up to
the Thirty-first day of March One thousand nine hundred and fourteen
in respect of the area of the added parts of Heavitree In default of
such provision being made the Corporation may make and levy in that
area such a rate in the nature of a general district rate as will be
sufficient to defray such current debts liabilities and expenditure.

(3) Except as provided by this Article the Corporation shall not
levy any general district rate in the added areas before the Thirty-first
day of March One thousand nine hundred and fourteen.

Property &c. of Urban and Rural Councils. Art. XVIII. Subject to the provisions of this Order and subject as
regards the property and liabilities of the Urban Council to any
adjustment to be made in respect of the excluded parts of Heavitree—

(1) All property and liabilities which immediately before the
commencement of this Order are vested in or attach to the
Urban Council whether as an Urban District Council or a
Burial Authority and all property and liabilities which
immediately before the said date are vested in or attach to
the Rural Council in relation exclusively to the added parts
of Topsham shall by virtue of this Order be transferred
to and vest in and attach to the Corporation and shall as the
case requires be held by the Corporation as Urban Sanitary

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxv.]
Provisional Order Confirmation (No. 11) Act, 1913.

Authority or Burial Authority of the City and any property and liabilities vested in or attaching to the Rural Council in relation to the added parts of Topsham conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888: A.D. 1913.
Exeter Order.

- (2) The Urban Council shall at the commencement of this Order be abolished and cease to exist and the Rural Council shall cease to exercise any powers or have any duties within the added parts of Topsham:
- (3)—(A) All arrears of rates made by the Urban Council and all other payments which at the commencement of this Order are due or owing to the Urban Council may be collected and recovered by the Corporation: Arrears of
rates &c.
- (B) All arrears of rates made by the Overseers of the existing Parish of Topsham for the purposes of the Public Health Acts or for highway expenses or for the purposes of the Lighting and Watching Act 1833 which at the commencement of this Order are due or owing in respect of hereditaments in the added parts of Topsham may be collected and recovered as if this Order had not been made and when collected and recovered shall be applied towards the discharge of any precept of the Rural Council which at that date shall be in force and not satisfied or in the case of rates made in the existing Parish of Topsham for the purposes of the Lighting and Watching Act 1833 towards defraying any expenses incurred by the Parish Council of that parish under the last-mentioned Act and the balances if any shall be paid to the Corporation:
- (4) Any balances in the hands of the Overseers of the Parishes of Heavitree and Topsham at or immediately before the commencement of this Order and any sum collected after that date by the Overseers of the Parish of Topsham in respect of any rate made before that date and levied upon any rateable hereditament in the added parts of Topsham shall be a matter for adjustment under Section 62 of the Act of 1888: Adjustment
of balances.
- (5) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that section shall have effect as if in subsections (5) (6) and (7) thereof the expression "Council" included any authority affected by this Order or by anything done in pursuance of this Order and as if in the case of any such authority not otherwise empowered to borrow under any Act or on any security Adaptation
of provisions
as to adjust-
ment.

[Ch. cxxxv.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 11) Act, 1913.

A.D. 1913.

Exeter Order.

or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Local Government Board may sanction:

Provided that where the authority affected by this Order or by anything done in pursuance of this Order are the Board of Guardians of a Poor Law Union Section 62 of the Act of 1888 shall apply with respect to any necessary adjustment with the modifications specified in the First Schedule to the Poor Law (Dissolution of School Districts and Adjustments) Act 1903:

3 Edw. 7.
c. 19.

Provided also that for the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order so far as it relates to the abolition or the alteration of the area of any existing parish that section shall have effect—

(A) As if the Overseers of the Parishes of Alphington Exeter Pinhoe and Topsham and the persons who immediately before the commencement of this Order were the Overseers of the Parish of Heavitree or if the circumstances of the case so require any persons who may be substituted for those persons by an Order of the Local Government Board were within the meaning of the said section as applied by this Article authorities affected by this Order;

(B) As if the poor rate or any other rate leviable in pursuance of the said section as applied by this Article were substituted for any fund mentioned in the section; and

(C) As if for subsections (6) and (7) of the said section there were substituted the subsections hereunto appended (that is to say):—

“ (6) If it is necessary for the purpose of giving
“ effect to any agreement or award for an adjustment
“ that a separate rate shall be levied in part of a
“ parish only the agreement or award may authorise
“ the making of such a separate rate as if it were a
“ poor rate and as if the part of the parish on which
“ it is to be levied were a whole parish.”

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxv.]
Provisional Order Confirmation (No. 11) Act, 1913.

“ (7) Any capital sum paid for the purposes of any A.D. 1913:
 “ adjustment or in pursuance of any order or award *Exeter Order.*
 “ of an arbitrator shall be applied by such person
 “ in such manner and for such purpose as the Local
 “ Government Board may authorise or direct ”:

(6) The accounts of the Urban Council and of the committees and Audit of
 officers of that Council shall be made up to the commence- accounts of
 ment of this Order and shall be audited by the District Urban Coun-
 Auditor in like manner and with the like incidents and cil.
 consequences as if this Order had not been made:

Provided that the audit may be held as soon as
 practicable after that date any statutory provision or regu-
 lation as to the time of holding the audit to the contrary
 notwithstanding:

Provided also that any sum certified by the district
 auditor to be due from any person shall be paid to the
 treasurer of the City and shall be a matter for adjustment
 under Section 62 of the Act of 1888.

Art. XIX.—(1) The liability for repayment of any borrowed moneys Mortgage,
 which the Urban Council are liable to repay or of so much of any of debts of
 those moneys as will be owing at the commencement of this Order and Urban Coun-
 for the payment of the interest thereon shall by virtue of this Order cil and
 be transferred and attach to the Corporation. Corporation.

(2) So much as will at the commencement of this Order be out-
 standing in respect of the said borrowed moneys (other than moneys
 which the Urban Council are liable to repay as a Burial Authority)
 together with so much of any sums borrowed by the Corporation
 as will at the commencement of this Order be owing and charged
 upon the district fund and general district rate of the existing City
 shall be charged upon the district fund and general district rate of
 the City.

(3) So much as will at the commencement of this Order be out-
 standing in respect of such of the said borrowed moneys as the Urban
 Council are liable to repay as a Burial Authority together with so much
 of any sums borrowed by the Corporation as will at the commence-
 ment of this Order be owing and charged upon the borough fund
 and borough rate of the existing City shall by virtue of this Order
 be charged upon the borough fund and borough rate of the City.

(4) All borrowed moneys to which this Article applies shall together
 with the interest to accrue due thereon be repaid by the Corporation
 within the respective periods for which the loans in respect of which
 the said sums are owing were originally sanctioned or within which
 the same are otherwise required to be repaid or are made repayable.

[Ch. cxxxv.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 11) Act, 1913.

A.D. 1913.

Exeter Order.

(5) Nothing in this Order shall prejudice or affect any mortgage or other security which has been granted in respect of any sum borrowed as aforesaid or the powers of any person entitled under any such mortgage or other security to enforce the same as if this Order had not been made and where for any such purpose it is necessary to continue the exercise of a power which would have existed but for this Order the power may continue to be exercised as if this Order had not been made and the general district rate of the City or the borough rate of the City as the case may be shall for any such purpose be levied and have effect in substitution for the rate which would have been leviable if this Order had not been made.

Adoptive Acts.

Art. XX.—(1) The provisions of the Baths and Washhouses Acts 1846 to 1899 the Infectious Disease (Prevention) Act 1890 the Public Health Acts Amendment Act 1890 the Museums and Gymnasiums Act 1891 (so far as it relates to museums only) the Public Libraries Acts 1892 to 1901 and the Notification of Births Act 1907 shall be in force in and apply to the City as if the same had been adopted therein.

(2) The provisions of the Private Street Works Act 1892 shall cease to be in force in and apply to any part of the area of the Urban District and the provisions of Parts II. and IV. of the Public Health Acts Amendment Act 1890 and such of the provisions of Part III. of that Act as are not applicable to Rural Districts shall cease to be in force in and apply to any of the excluded parts of Heavitree :

Provided that nothing in this subdivision shall—

- (A) affect the operation prior to the commencement of this Order of any such provisions or anything duly done or suffered thereunder ; or
- (B) affect any right privilege or obligation or liability acquired accrued or incurred under any such provisions ; or
- (C) affect any penalty forfeiture or punishment incurred in respect of any offence committed against any such provisions ; or
- (D) affect any investigation legal proceeding or remedy in respect of any such right privilege obligation liability penalty forfeiture or punishment as aforesaid.

Powers under Section 33 of Act of 1894.

Art. XXI. Subject to the provisions of any Order which the Local Government Board or the Secretary of State may make after the commencement of this Order—

- (1) The provisions of any Order made by the Local Government Board before the commencement of this Order and conferring upon the Council of the existing City any of the matters mentioned in Section 33 of the Act of 1894 and in that

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxv.]
Provisional Order Confirmation (No. 11) Act, 1913.

Order shall be deemed to have effect as if any reference in those provisions to the existing City the Council of the existing City and the existing Parish of Exeter extended and applied to the City the Council of the City and the Parish of Exeter: A.D. 1913.
Exeter Order.

(2)—(A) The provisions of any Order made by the Local Government Board or by the Secretary of State and declaring to be in force in the existing City any Parts or Sections of the Act of 1907 shall have and shall be deemed always to have had effect as if any reference in those provisions to the existing City extended and applied to the City and as if the said Parts and Sections were accordingly declared to be in force in the City: Powers
under Public
Health Acts
Amendment
Act 1907. ,
7 Edw. 7.
c. 53.

(B) The provisions of any Order made by the Local Government Board or by the Secretary of State and declaring to be in force in any contributory place within the Rural District affected by this Order any Parts or Sections of the Act of 1907 shall have effect and shall be deemed always to have had effect as if any reference in those provisions to that contributory place extended and applied to the contributory place as altered by this Order:

(c) The provisions of any Order made by the Local Government Board or by the Secretary of State and declaring to be in force in the Urban District any Parts or Sections of the Act of 1907 shall cease to apply to any part of the area comprised in the Urban District and subject to the provisions of this Article the Parts and Sections declared by any such Order to be in force shall cease to be in force.

Art. XXII. For the purposes and subject to the provisions of the Education Acts 1870 to 1910 and the Education (Administrative Provisions) Act 1911— Transfer of
public ele-
mentary
schools &c. to
Corporation.

(1) All public elementary schools (including the sites and schoolhouses) provided by the local education authority and any other land acquired and held by the local education authority for purposes of elementary education and situate within any part of the added areas with the furniture and fittings of the schoolhouses shall by virtue of this Order be transferred to and vested in the Corporation as the local education authority for all the estate and interest therein of the County Council as the local education authority and all contracts debts and liabilities which at the commencement of this Order are existing or are owing by or attach to the County Council in respect exclusively of the said

[Ch. cxxxv.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 11) Act, 1913.

A.D. 1913.

Exeter Order.

public elementary schools land furniture or fittings or of any other public elementary school situate in any part of the added areas or with respect to the officers teachers and servants of any of the public elementary schools in this subdivision mentioned shall by virtue of this Order enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority :

Provided that Section 68 of the Act of 1894 shall apply with respect to any adjustment required for the purposes of this subdivision :

Mortgage
debts in
respect of
transferred
schools.

(2) Subject to any adjustment which may hereafter be made the liability for repayment of so much of any loan raised exclusively in respect of any public elementary school (including the site and schoolhouse) and of any other land furniture or fittings transferred to and vested in the Corporation by virtue of this Order as will be owing at the commencement of this Order and the liability for the payment of interest on that part of the said loan shall by virtue of this Order be transferred and attach to the Corporation as the local education authority and so much of any such loan as will be owing at the commencement of this Order shall be charged on the borough fund and the borough rate of the City and shall be repaid by the Corporation within the period if any for which that part of the loan was originally sanctioned or within which the said part of the loan is otherwise required to be repaid or is made repayable :

Education
byelaws.

(3) Any byelaws in force in the existing City immediately before the commencement of this Order shall from and after that date apply to the City until revoked or altered and from and after that date any byelaws then in force in any part of the added areas shall cease to be in force :

Managers.

(4) Any managers of any public elementary school in the added areas who were appointed by the County Council the Urban Council or the Parish Council and any managers of a public elementary school in the excluded parts of Heavitree who were appointed by the Urban Council shall vacate office at the commencement of this Order.

Differential
rating.

Art. XXIII.—(1) (a) The total amount in the pound of all rates including the borough rate to be levied by the Corporation in any one year during a period of five years from the First day of April One thousand nine hundred and fourteen in respect of any hereditament in the added part of Heavitree (District No. 1) shall not exceed such an amount in the pound as when added to the poor rate will in

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxv.]
Provisional Order Confirmation (No. 11) Act, 1913.

respect of the assessment of any hereditament included in those rates A.D. 1913.
make up a total of six shillings in each pound of the rateable value *Exeter Order*
of the hereditament; and

(b) The total amount in the pound of the general district rates to be levied in any one year by the Corporation in respect of any hereditament in the added part of Heavitree (District No. 1) shall during a period of five years from the First day of April One thousand nine hundred and nineteen be less by sixpence than the total amount in the pound of the general district rates levied by the Corporation in the same year in respect of any hereditament of the like kind situate within the area of the existing Parish of Exeter and not subject to the benefit of any differential rating under any local Act or Provisional Order confirmed by Parliament in force within the existing City before the commencement of this Order.

(2)—(a) The total amount in the pound of all rates including the borough rate to be levied by the Corporation in any one year during a period of five years from the First day of April One thousand nine hundred and fourteen in respect of any hereditament in the added part of Heavitree (District No. 2) shall not exceed such an amount in the pound as when added to the poor rate will in respect of the assessment of any hereditament included in those rates make up a total of five shillings and sixpence in each pound of the rateable value of the hereditament; and

(b) The total amount in the pound of the general district rates to be levied by the Corporation in any one year in respect of any hereditament in the added part of Heavitree (District No. 2) shall—

(i) During a period of five years from the First day of April One thousand nine hundred and nineteen be less by one shilling; and

(ii) During a period of five years from the First day of April One thousand nine hundred and twenty-four be less by sixpence

than the total amount in the pound of the general district rates levied by the Corporation in the same year in respect of any hereditament of the like kind situate within the area of the existing Parish of Exeter and not subject to the benefit of any differential rating under any local Act or Provisional Order confirmed by Parliament in force within the existing City before the commencement of this Order.

(3)—(a) The total amount in the pound of all rates including the borough rate to be levied by the Corporation in any one year during a period of five years from the First day of April One thousand nine hundred and fourteen in respect of any hereditament in the added parts of Topsham shall not exceed such an amount in the pound as when

[Ch. cxxxv.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 11) Act, 1913.

A.D. 1913. added to the poor rate will in respect of the assessment of any hereditament included in those rates make up a total of four shillings and threepence in each pound of the rateable value of the hereditament; and
Exeter Order.

(b) The total amount in the pound of the general district rates to be levied by the Corporation in any one year in respect of any hereditament in the added parts of Topsham shall—

(i) During a period of five years from the First day of April
 One thousand nine hundred and nineteen be less by two shillings; and

(ii) During a period of five years from the First day of April
 One thousand nine hundred and twenty-four be less by one shilling

than the total amount in the pound of the general district rates levied by the Corporation in the same year in respect of any hereditament of the like kind situate within the area of the existing Parish of Exeter and not subject to the benefit of any differential rating under any local Act or Provisional Order confirmed by Parliament in force within the existing City before the commencement of this Order.

(4) Nothing in this Article shall apply in relation to any of the added areas any limit upon the amount of a rate leviable for the purpose of defraying any expenditure of the Corporation under the National Insurance Act 1911 or any expenses incurred by the Corporation in pursuance of any public general Act which may in the present session of Parliament or hereafter be passed and which may confer additional powers or impose additional duties upon the Corporation.

Corporation
to be Burial
Board for
City.

Art. XXIV.—(1) The Corporation shall be the Burial Board for the City and shall have within the City to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts Provided that no approval sanction or authorisation of the vestry of the Parish of Exeter shall be required in respect of any act of the Corporation as the Burial Board as aforesaid.

Saving rights
of burial.

(2) In relation to the burial ground provided by the Urban Council or their predecessors for the Parish of Heavitree—

Nothing in this Order shall prejudice or affect any such right of burial or of constructing a place of burial or of erecting and placing any monument gravestone tablet or monumental inscription as a parishioner an inhabitant or any other person has had or acquired before the commencement of this Order; and

Nothing in this Order shall prejudicially affect any right privilege authority or duty which immediately before the commencement of this Order will be exerciseable by or attach to any incumbent or sexton under the Burial Acts.

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxv.]
Provisional Order Confirmation (No. 11) Act, 1913.

(3) Subject to the provisions of the Burial Act 1900 all fees payments and sums fixed and settled and receivable by the Urban Council as a burial authority immediately prior to the commencement of this Order shall thenceforth be receivable by the Corporation acting as a Burial Board until or except in so far as any such fees payments or sums may be altered or varied in pursuance of the statutory provisions in that behalf.

A.D. 1913.
Exeter Order.
 Burial fees
 &c.

(4) Except so far as is necessary for any purpose of this Article the Burial Acts shall cease to apply and have effect in the excluded parts of Heavitree which by virtue of this Order are amalgamated with the existing Parishes of Alphington and Pinhoe respectively.

Cessation of
 Burial Acts
 in certain ex-
 cluded parts
 of Heavitree.

(5) The excluded parts of Heavitree which by this Order are amalgamated with the existing Parish of Topsham shall be added to the area within which the Parish Council of Topsham act as the authority for the execution of the Burial Acts and that Parish Council shall be the burial authority for the Parish of Topsham.

Inclusion of
 certain ex-
 cluded parts
 of Heavitree
 in Topsham
 burial area.

Art. XXV.—(1) In any case where the extension of the existing City by this Order affects the distribution of the proceeds of the local taxation licences or of the estate duty grant or of the Local Taxation (Customs and Excise) duties between the County and the City or between the County and the City on the one hand and any other County Borough on the other hand or any financial relations or questions between those areas or any adjustment which has been made in regard to the said distribution or financial relations or questions equitable adjustments may be made between the areas interested:

Adjustment
 of financial
 relations
 between
 Counties
 and County
 Boroughs.

For the purposes of this subdivision or of anything done or to be done in pursuance of this subdivision any reference in the said subdivision to the proceeds of licences or duties shall include a reference to the sums which in pursuance of subsection (4) of Section 17 of the Finance Act 1907 as amended by Section 6 of the Finance Act 1908 and Section 88 of the Finance (1909-10) Act 1910 and the Revenue Act 1911 or of any subsequent Act have been paid or will be payable in lieu of those proceeds.

(2) Any such adjustment as is authorised by subdivision (1) of this Article may be made by agreement between the Councils of the City the County and the County Borough affected and if such adjustment shall not have been made before the Thirtieth day of September One thousand nine hundred and fourteen then on the application of any of the Councils interested the Local Government Board may if they think fit make the adjustment themselves or appoint an arbitrator to make it.

(3) In any case in which an agreement for equitable adjustments as aforesaid shall not have been made the provisions of the Act

[Ch. cxxxv.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 11) Act, 1913.

A.D. 1913. of 1888 relating to adjustments between Administrative Counties and
Exeter Order. County Boroughs shall apply with the necessary modifications and the Local Government Board or an arbitrator appointed by them as the case may be shall be substituted in those provisions for the Commissioners appointed under the Act of 1888 and notwithstanding anything in the provisions of this Order or of the Act of 1888 any such adjustment and the determination of any matter incidental or in relation thereto or consequent thereon shall when made by the Local Government Board be deemed to be made by them otherwise than as arbitrators and any arbitrator appointed by them shall be deemed to be an arbitrator within the meaning of Section 62 of the Act of 1888 and the provisions of the Act of 1888 shall apply accordingly:

Provided—

(A) that in lieu of subsection (6) of Section 61 of the Act of 1888 subsections (1) and (5) of Section 87 of the Act of 1888 shall apply to any inquiries which may be directed by the Local Government Board under this Article and to the costs of those inquiries; and

(B) that subsection (6) of Section 32 of the Act of 1888 shall apply to any agreement or award made under this Article.

Adjustment
for purposes
of Licensing
(Consolidation)
Act 1910.

(4)—(A) An equitable adjustment shall be made between the County and the City respecting the interest of the added areas in any compensation fund constituted under Section 21 of the Licensing (Consolidation) Act 1910 or under any enactment repealed by that Act.

(B) Such adjustment shall be made by agreement between the Compensation Authority (as defined by the Licensing (Consolidation) Act 1910) for the County and for the City within twelve months from the commencement of this Order or in default of agreement by an arbitrator appointed by the Secretary of State.

(C) For the purpose of such adjustment an arbitrator appointed by the Secretary of State shall be deemed to be an arbitrator within the meaning of Section 62 of the Act of 1888 and the provisions of that Act shall apply accordingly.

Electoral
Divisions and
County
Councillors.

Art. XXVI. Subject to the provisions of Section 54 of the Act of 1888—

(1) The number of County Councillors for the County shall be reduced from seventy-eight to seventy-seven and the said Order dated the Fourteenth day of August One thousand eight hundred and eighty-eight as altered as aforesaid shall be further altered accordingly:

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxv.]
Provisional Order Confirmation (No. 11) Act, 1913.

(2) The Heavitree Electoral Division of the County shall be abolished and the person who immediately before the commencement of this Order is the County Councillor representing that Electoral Division shall cease to hold office : A.D. 1913.
Exeter Order.

(3) The Topsham Electoral Division of the County as diminished by the inclusion in the City of the added parts of Topsham shall be further altered by the addition thereto of the parts of the Parish of Heavitree which are by this Order included in the Parish of Topsham the Broadclist Electoral Division of the County shall be altered by the addition thereto of the part of the Parish of Heavitree which is by this Order included in the Parish of Pinhoe and the Alphington Electoral Division of the County shall be altered by the addition thereto of the part of the Parish of Heavitree which is by this Order included in the Parish of Alphington and the persons who immediately before the commencement of this Order are the County Councillors representing those Electoral Divisions shall continue to represent the same divisions as if they had been originally elected to represent those divisions as hereby altered :

(4) Subject as provided in this Article no County Alderman or County Councillor in office immediately before the commencement of this Order shall be deemed to lose his qualification by reason of the alterations effected by this Order.

Art. XXVII. It shall be the duty of the Corporation within two years after the date of the Act of Parliament confirming this Order to proceed to carry out and execute such additional works as the Local Government Board may consider necessary and approve for the disposal of the sewage of the City and in the event of the Corporation not proceeding with such works within such period as aforesaid or not proceeding with the same with due diligence the requirements of this Article may be enforced in the manner provided by Section 299 of the Public Health Act 1875 as if this Article were an Order of the Local Government Board limiting the time for the performance by the Corporation of their duty in that behalf and the Corporation had not performed the duty hereby imposed within the time limited by the Order. Limiting
time for
execution of
additional
sewage works.

Art. XXVIII. Subject to the provisions of any Order which the Local Government Board may hereafter make the Port Order as altered by the Port Amending Order shall be further altered by the substitution for the proportions specified in Article 11 of the Port Order in which the constituent riparian authorities of the Port Sanitary Port Sanitary
Authority.

[Ch. cxxxv.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 11) Act, 1913.

A.D. 1913. Authority shall contribute towards any expenses incurred by the Port
Exeter Order. Sanitary Authority of the following proportions namely :—

The Urban Sanitary Authority for the City and County of the City of Exeter - - - -	Thirteen Twenty-seconds.
The Urban District Council of Exmouth	Four Twenty-seconds.
The Rural District Council of Saint Thomas - - - -	Five Twenty-seconds.

Art. XXIX.—(1) The added parts of Topsham shall be separated from the existing Parish of Topsham and those parts and the added parts of Heavitree shall be amalgamated with the existing Parish of Exeter.

(2) The excluded parts of Heavitree which are respectively coloured purple on the City maps shall be amalgamated with the Parish of Topsham as altered by subdivision (1) of this Article the excluded part of Heavitree which is coloured yellow on the City maps shall be amalgamated with the existing Parish of Alphington and the excluded part of Heavitree which is coloured brown on the City maps shall be amalgamated with the existing Parish of Pinhoe and all such parts shall be added to the Rural District.

Art. XXX.—(1) Such of the provisions of the Public Health Acts Amendment Act 1890 as are now in force in the Rural District shall be in force in and apply to the Rural District as altered by this Order.

(2)—(a) Any byelaws and regulations made by the Rural Council or their predecessors and in force immediately before the commencement of this Order in the existing Parishes of Alphington Pinhoe and Topsham shall until they are repealed altered or revoked extend to and be in force within the Parishes of Alphington Pinhoe and Topsham.

(b) Any byelaws and regulations made by the Urban Council and in force immediately before the commencement of this Order in the excluded parts of Heavitree shall on that date cease to be in force therein except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved before that date by the Urban Council or have been sent to the surveyor or clerk to that Council one month at least before that date and shall not have been disapproved by that Council. As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Rural Council and as if the Rural Council were referred to therein instead of the Urban Council. Provided that any proceedings which if this Order

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxv.]
Provisional Order Confirmation (No. 11) Act, 1913.

had not been made might have been taken by the Urban Council for any offence committed before the commencement of this Order against any byelaws and regulations which by virtue of this subdivision cease to be in force may be taken by the Rural Council as if those byelaws and regulations had remained in force and as if the Rural Council had been substituted therein for the Urban Council.

A.D. 1913.
Exeter Order.

(3) All the powers rights duties capacities liabilities and obligations of an Urban District Council with which the Rural Council are now invested in pursuance of any Order issued by the Local Government Board under the Public Health Acts in respect of any of the contributory places of Alphington Pinhoe or Topsham shall be deemed to vest in and attach to the Rural Council in respect of that contributory place as altered by this Order.

Art. XXXI.—(1) (a) From and after the commencement of this Order the unrepealed provisions of the Exeter Poor Acts shall be repealed and the name of the Board of Guardians shall be altered to “the Guardians of the Poor of the Parish of Exeter” and the Board of Guardians shall be deemed to have been and to be constituted a Board of Guardians for the Parish of Exeter in pursuance of the Poor Law Amendment Act 1834 and the Acts amending that Act and those Acts shall henceforth apply to the Parish of Exeter and to the Board of Guardians for that Parish.

Repeal of
Exeter Poor
Acts Con-
stitution of
Board of
Guardians
for the parish
of Exeter.

(b) Saving as aforesaid the Guardians as a corporate body shall not be affected by this Order and subject to any adjustment which may hereafter be made all property and liabilities vesting in or attaching to the Board of Guardians shall continue to vest in and attach to the said corporate body.

(2) The Union Assessment Acts 1862 to 1880 shall be in force in the Parish of Exeter in like manner and with the like effect as if that Parish had been included in the Union Assessment Committee Act 1862 with the consent of the Local Government Board in pursuance of Section 45 of that Act as amended by Section 2 of the Union Assessment Act 1880 and the Union Assessment Acts 1862 to 1880 as so applied to the Parish of Exeter shall be construed and have effect with the substitution therein of the word “Parish” for the word “Union” except where the context otherwise requires and with such other modifications and adaptations as are needed to render the said Acts applicable to the circumstances of the case.

Union
Assessment
Committee
Acts.

Art. XXXII. Subject to the provisions of Section 60 of the Act of 1894 the following provisions shall have effect:—

Rural Dis-
trict Coun-
cillors and
Guardians.

(1)—(a) The Parish of Exeter shall for the purposes of the election of guardians be divided into fourteen wards:

[Ch. cxxxv.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 11) Act, 1913.

A.D. 1913.
Exeter Order.

(b) The eleven existing wards and the number of Guardians respectively assigned thereto shall remain unaltered :

(c) The added areas shall be formed into three new wards which shall respectively be called and be co-terminous in area with the Heavitree Ward the Polsloe Ward and the Wonford Ward constituted by Article VIII. of this Order and two Guardians shall be elected for each of those Wards :

(2)—(a) The five persons who at the commencement of this Order are holding the office of Guardian of the Poor for the Central Polsloe Priory Rural and Wonford wards of the existing Parish of Heavitree shall cease to act as members of the Board of Guardians of the Saint Thomas' Union and shall become members of the Board of Guardians of the Parish of Exeter The persons representing the said Central and Rural Wards shall be deemed to have been elected for the Heavitree Ward of the Parish of Exeter the persons representing the said Polsloe and Priory Wards shall be deemed to have been elected for the Polsloe Ward of the Parish of Exeter and the person representing the said Wonford Ward shall be deemed to have been elected for the Wonford Ward of the Parish of Exeter As soon as practicable after the commencement of this Order an additional Guardian shall be elected for the last-named ward and the person so elected together with the other five persons referred to in this subdivision shall retire from office on the Fifteenth day of April One thousand nine hundred and sixteen :

(b) The persons who at the commencement of this Order are holding the offices of Rural District Councillor and Guardian of the Poor for the existing Parish of Alphington the existing Parish of Pinhoe and the existing Parish of Topsham shall be deemed to have been elected for and shall represent those Parishes respectively as altered by this Order as if they had been originally elected to represent the altered Parishes respectively.

Parish Councils.

Art. XXXIII. The Parish Councils of the existing Parishes of Alphington Pinhoe and Topsham shall be deemed to have been elected and shall be the Parish Councils for the Parishes of Alphington Pinhoe and Topsham.

Ecclesiastical divisions and charities.

Art. XXXIV. Nothing in this Order shall affect any ecclesiastical parish or district or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment which now is applicable for the benefit of any existing parish affected by this Order.

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxv.]
Provisional Order Confirmation (No. 11) Act, 1913.

Art. XXXV. Until new valuation lists are in force—

A.D. 1913.

- (1) The portions of the valuation lists of the existing Parishes of Heavitree and Topsham which respectively relate to hereditaments in the added parts of Heavitree and the added parts of Topsham shall be deemed to form part of the valuation list of the Parish of Exeter: *Exeter Order.*
Valuation
lists.
- (2) The remaining portion of the valuation list of the existing Parish of Topsham together with the portions of the valuation list of the existing Parish of Heavitree which relate to hereditaments in the parts of that parish included by this Order in the Parish of Topsham shall be deemed to be the valuation list of the Parish of Topsham:
- (3) The portion of the valuation list of the existing Parish of Heavitree which relates to hereditaments in the part of that parish included by this Order in the Parish of Alphington shall be deemed to form part of the valuation list of the Parish of Alphington:
- (4) The portion of the valuation list of the existing Parish of Heavitree which relates to hereditaments in the part of that parish included by this Order in the Parish of Pinhoe shall be deemed to form part of the valuation list of the Parish of Pinhoe.

Art. XXXVI.—(1) Subject to any future revision the basis or standard of the county rate for the County shall be altered— County rate
basis.

(a) by the omission therefrom of the reference to the total annual value of the property in the Parish of Heavitree by the addition to the amount appearing therein as the total annual value of the property in the existing Parish of Alphington of such a sum as will represent the annual value of the property in the part of the existing Parish of Heavitree which is included by this Order in the Parish of Alphington and by the addition to the amount appearing therein as the total annual value of the property in the existing Parish of Pinhoe of such a sum as will represent the annual value of the property in the part of the existing Parish of Heavitree which is included by this Order in the Parish of Pinhoe;

(b) by the deduction from the amount appearing therein as the total annual value of the property in the existing Parish of Topsham of such a sum as will represent the annual value of the property in the parts of that parish which are included by this Order in the Parish of Exeter; and

[Ch. cxxxv.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 11) Act, 1913.

A.D. 1913.
Exeter Order.

(c) by the addition to the amount appearing therein as the total annual value of the property in the existing Parish of Topsham of such a sum as will represent the annual value of the property in the parts of the existing Parish of Heavitree which are included by this Order in the Parish of Topsham.

(2) For the purposes of this Article the annual value of the property in the part or parts of a parish included by this Order in the Parish of Exeter or the Parish of Topsham or the Parish of Alphington or the Parish of Pinhoe shall in each case be the amount which bears the same relation to the total annual value of the existing parish as the assessable value of the property in the included part or parts of the existing parish bears to the total assessable value of property in the existing parish and the total annual value of the existing parish shall be the amount appearing as such in the basis or standard of the county rate.

(3) For the purposes of this Article assessable value means one-half of the rateable value according to the valuation list for the time being in force of the agricultural land together with the rateable value according to that list of the buildings and other hereditaments not being agricultural land in the existing parish or in the part or parts included in the Parish of Exeter or in the Parish of Topsham or in the Parish of Alphington or in the Parish of Pinhoe as the case may require.

Saving for
existing lists
of parliamen-
tary voters
&c.

Art. XXXVII. For the purposes of the registers of persons entitled to vote at an election of Members of Parliament of the registers of parochial electors and of jury lists the parishes affected by this Order shall be deemed to continue unaltered until the new registers and lists come into operation :

Provided that for the purposes of any election under the Act of 1894 to be held for any area affected by this Order and of the holding of any Parish Meeting the town clerk or the clerk of the County Council as the case may require shall if and when necessary cause the register of parochial electors to be altered in such manner as may be requisite to give effect to the provisions of this Order.

Settlement
and removal
of the poor.

Art. XXXVIII. For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Order the following provisions shall have effect that is to say :—

(1) Every person who at the commencement of this Order has acquired or is in the course of acquiring a settlement in any of the existing Parishes of Exeter Heavitree Topsham Alphington or Pinhoe by reason of any residence completed or in the course of completion of any act or thing done or

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxv.]
Provisional Order Confirmation (No. 11) Act, 1913.

in the course of being done or of any status condition right A.D. 1913.
or privilege acquired or created or in the course of acqui- *Exeter Order.*
sition or creation—

- (i) in the existing Parish of Exeter ; or
- (ii) in either of the added parts of Heavitree ; or
- (iii) in either of the added parts of Topsham ; or
- (iv) in the excluded part of Topsham ; or
- (v) in either of the parts of the existing Parish of Heavitree included by this Order in the Parish of Topsham ; or
- (vi) in the existing Parish of Alphington ; or
- (vii) in the part of the existing Parish of Heavitree included by this Order in the Parish of Alphington ; or
- (viii) in the existing Parish of Pinhoe ; or
- (ix) in the part of the existing Parish of Heavitree included by this Order in the Parish of Pinhoe

shall be deemed to have acquired or to be in the course of acquiring in the first second and third cases a settlement in the Parish of Exeter in the fourth and fifth cases a settlement in the Parish of Topsham in the sixth and seventh cases a settlement in the Parish of Alphington and in the eighth and ninth cases a settlement in the Parish of Pinhoe and in each case as if the existing parish or the specified part of the existing parish were and had always been the parish or a part of the parish in which by virtue of this Article the person shall be deemed to have acquired or to be in the course of acquiring a settlement :

(2) Every person who at the commencement of this Order has acquired or is in the course of acquiring a status of irremovability from the Parish of Exeter or the Saint Thomas' Union by reason of residence—

- (i) in the existing Parish of Exeter ; or
- (ii) in either of the added parts of Heavitree ; or
- (iii) in either of the added parts of Topsham ; or
- (iv) in the excluded part of Topsham ; or
- (v) in either of the parts of the existing Parish of Heavitree included by this Order in the Parish of Topsham ; or
- (vi) in the existing Parish of Alphington ; or
- (vii) in the part of the existing Parish of Heavitree included by this Order in the Parish of Alphington ; or

[Ch. cxxxv.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 11) Act, 1913.

A.D. 1913.

(viii) in the existing Parish of Pinhoe ; or

Exeter Order.

(ix) in the part of the existing Parish of Heavitree included by this Order in the Parish of Pinhoe

shall be deemed to have acquired or to be in course of acquiring a status of irremovability in the first second and third cases from the Parish of Exeter by reason of residence in the Parish of Exeter and in the remaining cases from the Saint Thomas' Union by reason of residence in the fourth and fifth cases in the Parish of Topsham in the sixth and seventh cases in the Parish of Alphington and in the eighth and ninth cases in the Parish of Pinhoe.

Balances in
Guardians'
accounts.

Art. XXXIX. Any balances standing in the books of the Guardians of the Poor of the Saint Thomas' Union to the credit of the Parish of Heavitree or of the Parish of Topsham and any balances owing by either of those parishes at that date shall be a matter for adjustment under Section 62 of the Act of 1888.

Saving for
contribution
orders and
precepts.

Art. XL. Notwithstanding the alteration in the areas of the parishes effected by this Order all contribution orders made by the Guardians of the Poor of the Saint Thomas' Union and all precepts made by the Rural Council before the commencement of this Order shall be as valid in law as if this Order had not been made.

Arrears of
rates.

Art. XLI.—(1) All sums in respect of rates made by the Overseers of the Poor of the existing Parish of Topsham and due or owing at the commencement of this Order shall be collected and recovered by the Overseers of the Poor of the Parish of Topsham as if this Order had not been made.

(2) All sums in respect of rates made by the Overseers of the Poor of the existing Parish of Heavitree and due or owing at the commencement of this Order shall be collected and recovered in respect of the added parts of Heavitree by the Overseers of the Poor of the Parish of Exeter and in respect of any of the excluded parts of Heavitree by the Overseers of the Poor of the parish in which the part is included by this Order.

Borrowing
powers for
purposes of
Order.

Art. XLII. For the purpose of defraying any expenses under this Order which in the opinion of the Local Government Board are properly chargeable to capital the Corporation may borrow according and subject to the provisions and restrictions of the Public Health Act 1875 and may mortgage the borough fund and borough rate or the district fund and general district rate of the City for the purpose of securing the repayment of any moneys so borrowed and the interest thereon Provided that all such moneys shall be repaid within such period not

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxv.]
Provisional Order Confirmation (No. 11) Act, 1913.

exceeding thirty years from the date of borrowing the same as A.D. 1913.
the Corporation with the sanction of the Local Government Board
determine. —
Exeter Order.

Art. XLIII. This Order may be cited as the Exeter (Extension) Short title.
Order 1913.

The SCHEDULES above referred to.

SCHEDULE A.

PART I.—LOCAL ACTS.

Session and Chapter.	Title or Short Title.
1 Geo. IV. c. lxxviii. -	An Act for removing the Markets held within the City of Exeter and for providing another Market Place or other Market Places in lieu thereof.
2 & 3 Wm. IV. c. cvi. -	An Act for better paving lighting watching cleansing and otherwise improving the City of Exeter and County of the same City.
3 Wm. IV. c. xxxii. -	An Act for more effectually supplying with Water the City and County of the City of Exeter and Places adjacent thereto.
4 Wm. IV. c. viii. -	An Act for removing the Markets held in the High and Fore Street and other Places within the City of Exeter and for providing other Markets in lieu thereof.
5 & 6 Wm. IV. c. xcvi. -	An Act to amend an Act of the Third year of His present Majesty for more effectually supplying with Water the City and County of the City of Exeter and Places adjacent thereto.
3 Vict. c. lviii. -	An Act to amend the Acts for supplying with Water the City and County of the City of Exeter and Places adjacent thereto.
3 & 4 Vict. c. cxxii. -	An Act to alter amend and enlarge the Powers and Provisions of an Act for removing the Markets held in the High and Fore Street and other Places within the City of Exeter and for providing other Markets in lieu thereof.
40 & 41 Vict. c. cxli. -	The City of Exeter Extension Act 1877.
41 & 42 Vict. c. cxc. -	The Exeter Corporation Water Act 1878.
44 & 45 Vict. c. cxxx. -	The Exeter Tramways Act 1881.
63 & 64 Vict. c. ccxxxii. -	The Exeter Corporation Act 1900.
3 Edw. 7. c. clxxxii. -	The Exeter Corporation Act 1903.

[Ch. cxxxv.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 11) Act, 1913.

A.D. 1913.

PART II.—CONFIRMATION ACTS.

<i>Exeter Order.</i>	Session and Chapter.	Short Title.	Order thereby confirmed.
	30 & 31 Vict. c. 123.	The Local Government Supplemental Act 1867 (No. 6).	The Order relating to Exeter dated the 19th day of June 1867.
	54 & 55 Vict. c. civ.	The Electric Lighting Orders Confirmation (No. 8) Act 1891.	The Exeter Electric Lighting Order 1891.
	6 Edw. 7. c. cx.	The Electric Lighting Orders Confirmation (No. 5) Act 1906.	The Exeter Electric Lighting (Extension) Order 1906.
	1 & 2 Geo. 5. c. cxli.	The Local Government Board's Provisional Orders Confirmation (No. 2) Act 1911.	The Exeter Order 1911.

SCHEDULE B.

POOR LAW LOCAL ACTS.

Session and Chapter.	Title.
9 & 10 Wm. III. c. 33.	- An Act for erecting hospitals and workhouses within the city and county of the city of Exon for the better employing and maintaining the poor there.
31 Geo. II. c. 53.	- An Act to explain amend and render more effectual an Act passed in the ninth and tenth years of the reign of His late Majesty King William the Third intituled An Act for erecting hospitals and workhouses within the city and county of the city of Exon for the better employing and maintaining the poor there.
14 Geo. III. c. 61.	- An Act to explain and amend two several Acts of Parliament for "erecting hospitals and workhouses within the " city and county of the city of Exon for the better " employing and maintaining the poor there" and to raise further sums of money for the more effectually carrying the purposes of the said Acts into execution.
25 Geo. III. c. 21.	- An Act to render more effectual several Acts of Parliament for erecting hospitals and workhouses within the city and county of the city of Exon for the better employing and maintaining the poor there and to raise further sums of money for the better carrying the purposes of the said Acts into execution.
28 Geo. III. c. 76.	- An Act for raising further sums of money for the better relief of the poor of the city and county of the city of Exon and to explain and amend an Act passed in the twenty-fifth year of the reign of His present Majesty for rendering more effectual several Acts of Parliament for erecting hospitals and workhouses within the said city and county for the better employing and maintaining the poor there.

Given under the Seal of Office of the Local Government Board this
Sixth day of May One thousand nine hundred and thirteen.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

SECOND SCHEDULE.

A.D. 1913.

PART I.

RULES FOR DETERMINING ADJUSTMENTS OF THE LOCAL TAXATION
LICENCES THE ESTATE DUTY GRANT AND THE RESIDUE
UNDER SECTION 1 OF THE LOCAL TAXATION (CUSTOMS AND
EXCISE) ACT 1890.

1. The portion of the local taxation licences and estate duty grant payable or estimated to be payable in respect of the area of the County as it existed immediately before the Ninth day of November One thousand nine hundred and thirteen shall after the appointed day be divided between the County Council and the Corporation and the amount payable to each shall be apportioned on the following basis:—

(A) There shall be apportioned to the County Council amounts equal to the average annual amounts of the compulsory payments and transfers made by or on behalf of that Council in accordance with section 24 of the Local Government Act 1888 in respect of the five years ending the Thirty-first day of March One thousand nine hundred and fourteen less the portions of such average annual amounts paid and transferred for and in respect of the added area and amounts equal to such last-mentioned portions shall be apportioned to the Corporation:

(B) Out of the balance (if any) of the said portion of the local taxation licences and estate duty grant there shall next be apportioned to the County Council amounts equal to the average annual amounts of the compulsory payments made by or on behalf of that Council in accordance with section 26 of the Local Government Act 1888 in respect of the five years ending the Thirty-first day of March One thousand nine hundred and fourteen less the portions of such annual average amounts paid for and in respect of the added area and amounts equal to such last-mentioned portions shall be apportioned to the Corporation:

(C) Out of the balance (if any) of the said portion of the local taxation licences and estate duty grant there shall next be apportioned to the County Council a sum equal to one-half of the average annual cost during the five years preceding the First day of April One thousand nine hundred and thirteen of the maintenance of main roads within the County as it existed immediately before the

[Ch. cxxxv.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 11) Act, 1913.

A.D. 1913.

Ninth day of November One thousand nine hundred and thirteen (including any payments made in respect of the interest on or of the repayment of the capital of loans raised on account of such main roads) after deducting the amount of one-half of such cost incurred in respect of the main roads within the added area and such last-mentioned amount shall be apportioned to the Corporation :

Provided that if it appears that the County Council have failed to declare any roads in the County as it existed immediately before the Ninth day of November One thousand nine hundred and thirteen to be main roads which ought to have been so declared or have declared any roads to be main roads which ought not to have been so declared proper adjustments shall be made in the calculation of the cost of maintenance of main roads in the County as it so existed under this rule by the inclusion of the cost of such roads as ought to have been declared to be main roads or the exclusion of the cost of such roads as ought not to have been declared to be main roads as the case may require :

- (D) If any balance of the local taxation licences and estate duty grant remains after apportioning between the County Council and the Corporation the sums ascertained in accordance with the foregoing rules such balance shall be divided between the County Council and the Corporation in proportion to the rateable values on the appointed day of the County and of the added area respectively :
- (E) If any difficulty arises in ascertaining for the purposes of paragraph (A) or paragraph (B) the portion of any item paid or transferred for and in respect of the added area or any part thereof a portion of that item proportionate to the rateable value at the commencement of the financial year in respect of which the payment or transfer was made of that area or part as compared with the rateable value of the whole area for and in respect of which the item was paid or transferred shall be deemed to have been paid or transferred for and in respect of the added area :
- (F) If the amount available for apportionment under any of the preceding paragraphs is insufficient to meet the whole of the amounts apportioned under the paragraph to the County Council and the Corporation those amounts shall be reduced proportionately.

2. The residue under section 1 of the Local Taxation (Customs and Excise) Act 1890 payable or estimated to be payable in respect of the area of the County as it existed immediately before the Ninth day of November One thousand nine hundred and thirteen shall after the appointed day be divided between the County Council and the Corporation in proportion to the rateable values on the appointed day of the County and of the added area respectively. A.D. 1913.

3. In this Part of this Schedule—

- (1) The expression "the appointed day" means the First day of April One thousand nine hundred and fourteen;
- (2) The expressions "the County" and "the County Council" mean respectively the Administrative County of Devon and the County Council of that County;
- (3) The expression "the Corporation" means the Mayor Aldermen and Citizens of the City and County of the City of Exeter acting by the Council;
- (4) The expression "the added area" means the area added to the City of Exeter by the Order relating to Exeter;
- (5) The expression "rateable value" means (unless the County Council and the Corporation otherwise agree) the rateable value as determined by the last valuation list or if there is no valuation list by the last poor rate.

PART II.

RULES FOR DETERMINING THE SUM TO BE PAID IN RESPECT OF INCREASE OF BURDEN ON RATEPAYERS.

1. Regard shall be had to—

- (a) The difference between the burden on the ratepayers which will properly be incurred by the Council or other authority affected by the Order in meeting the cost of executing any of their powers and duties and the burden on the ratepayers which would properly have been incurred by that Council or other authority in meeting such cost had no alteration of boundaries or other change taken place;
- (b) The length of time during which the increase of burden may be expected to continue:

Provided that no alteration of income in consequence of an apportionment under Part I. of this Schedule shall be taken into account.

[Ch. cxxxv.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 11) Act, 1913.

A.D. 1913.

2. The sum payable to any council or other authority affected by the Order in respect of the increase of burden shall not exceed or if payable by instalments or by way of annuity the capitalised value of the instalments or annuity shall not exceed the average annual increase of burden multiplied by fifteen.

3. Any sum payable in respect of the cost of maintenance of main roads shall be payable by way of annuity.

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